

25CHCV00893 25CHCV00893

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-10

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Case Number: 25CHCV00893 Hearing Date: September 10, 2026 Dept: F47

Dept. F47

Date: 9/10/26

Case #25CHCV00893

MOTION TO BE

RELIEVED AS COUNSEL

Amended motion filed on 8/26/26.

MOVING ATTORNEY: Nathan Mubasher

CLIENTS: Defendants Gabriel O. Castillo and Best Choice

Hospice Service, Inc.

RESPONDING PARTY: Plaintiff David Kreuz

RELIEF REQUESTED: An order relieving Nathan

Mubasher as counsel for Defendants Gabriel O. Castillo and Best Choice Hospice

Service, Inc.

RULING: The motion is denied without

prejudice.

On 6/29/26, attorney Nathan Mubasher filed a motion

seeking an order relieving him as counsel for Defendants Gabriel O. Castillo

and Best Choice Hospice Service, Inc. On

8/6/26, Plaintiff David Kreuz (Plaintiff) filed and served an opposition to the motion. On 8/12/26, attorney Mubasher filed and served a reply to the opposition. The Court issued a tentative ruling to deny the motion without prejudice. On 8/19/26, the Court continued the hearing on the motion to 9/10/26 to allow Moving Party/Counsel to address the issues in the tentative ruling which included, among other things, a failure to file a proof of service showing that the motion was served on the clients. (See 8/19/26 Minute Order).

On 8/26/26, five court days later, attorney Mubasher filed amended motion documents addressing the defects noted by the Court in the original motion papers. On 8/26/26, attorney Mubasher filed a proof of service indicating that the amended motion papers were electronically served on Plaintiff's counsel on 8/26/26.

On 9/2/26, attorney Mubasher filed a proof of service indicating that the original motion papers were purportedly served by U.S. mail on the clients on 7/10/26, 11 days after the original motion papers were filed on 6/29/26. On 9/2/26, attorney Mubasher filed another proof of service indicating that the amended motion papers were purportedly served by U.S. mail on the clients on 8/28/26, only 8 court days before the continued hearing date. See CCP 1005(b) (motion papers must be filed and served at least 16 court days before the continued hearing date + 5 additional calendar days when service is by mail).

Moreover, the proofs of service filed on 9/2/26 do not comply with the requirements set for in CCP 1013a.

CCP 1013a provides:

"Proof of service by mail may be made by one of the following methods:

(1) An affidavit setting forth the exact title of the document served and filed in the cause, showing the name and residence or business address of the person making the service, showing that he or she is a resident of or employed in the county where the mailing occurs, that he or she is over the age of 18 years and not a party to the cause, and showing the date and place of deposit in the mail, the name and

address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(2) A certificate setting

forth the exact title of the document served and filed in the cause, showing the name and business address of the person making the service, showing that he or she is an active member of the State Bar of California and is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

(3) An affidavit setting forth

the exact title of the document served and filed in the cause, showing (A) the name and residence or business address of the person making the service, (B) that he or she is a resident of, or employed in, the county where the mailing occurs, (C) that he or she is over the age of 18 years and not a party to the cause, (D) that he or she is readily familiar with the business' practice for collection and processing of correspondence for mailing with the United States Postal Service, (E) that the correspondence would be deposited with the United States Postal Service that same day in the ordinary course of business, (F) the name and address of the person served as shown on the envelope, and the date and place of business where the correspondence was placed for deposit in the United States Postal Service, and (G) that the envelope was sealed and placed for collection and mailing on that date following ordinary business practices. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date or postage meter date on the envelope is more than one day after the date of deposit for mailing contained in the affidavit.

(4) In case of service by the

clerk of a court of record, a certificate by that clerk setting forth the exact title of the document served and filed in the cause, showing the name of the clerk and the name of the court of which he or she is the clerk, and that he or she is not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid. This form of proof is sufficient for service of process in which the clerk or deputy clerk

signing the certificate places the document for collection and mailing on the date shown thereon, so as to cause it to be mailed in an envelope so sealed and so addressed on that date following standard court practices. Service made pursuant to this paragraph, upon motion of a party served and a finding of good cause by the court, shall be deemed to have occurred on the date of postage cancellation or postage meter imprint as shown on the envelope if that date is more than one day after the date of deposit for mailing contained in the certificate.”

The proofs of service filed on 9/2/26 are signed by an individual named Raymond Mercado and inconsistently indicate that Mercado is a resident of or employed in the county where the mailing took place and then indicate that Mercado’s residence or business address is “24025 Bradford Green Square, Cary NC 27519.” (See Proofs of Service filed 9/2/26, Nos. 1 and 2). The proofs of service then indicate that Mercado purportedly mailed the motion documents by causing them “to be mailed via EDexis, which deposited them with USPS in Jackson, CA.” (See Proofs of Service filed 9/2/26, No. 3). It is not clear how Mercado who is apparently located in North Carolina can attest to what was deposited in the mail in Jackson, California following the ordinary course of business practice of attorney Mubasher’s office which is located in Irvine, California. (See Proofs of Service filed 9/2/26, No. 4.b.).